



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**NATIONAL AQUACULTURE DEVELOPMENT
AUTHORITY OF SRI LANKA
ACT, No. 53 OF 1998**

[Certified on 25 th November, 1998]

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*National Aquaculture Development Authority
of Sri Lanka Act, No. 53 of 1998*

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AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF THE NATIONAL
AQUACULTURE DEVELOPMENT AUTHORITY OF SRI LANKA, TO
DEVELOP AQUATIC RESOURCES AND THE AQUACULTURE
INDUSTRY ; AND TO MAKE PROVISION FOR MATTERS CONNECTED
THEREWITHOR INCIDENTAL THERETO.

BE it enacted by the Parliament of the Democratic Socialist
Republic of Sri Lanka as follows :-

1. This Act may be cited as the National Aquaculture
Development Authority of Sri Lanka Act, No. 53 of 1998
and shall come into operation on such date as the Minister
may appoint by Order published in the Gazette (hereinafter
referred to as the "appointed date").

Short title and
date of operation.

PART I

ESTABLISHMENT AND CONSTITUTION OF THE NATIONAL
AQUACULTURE DEVELOPMENT AUTHORITY OF SRI LANKA

2. (1 } **There** shall be established an authority which shall
be called the National Aquaculture Development Authority
of Sri Lanka (hereinafter referred to as the "Authority").

Establishment of
the National
Aquaculture
Development
Authority of Sri
Lanka.

(2) The Authority shall, by the name assigned to it by
subsection (1), be a body corporate with perpetual succession
and a common seal, and may sue and be sued in all courts.

3. The administration, management and control of the
affairs of the Authority shall be vested in a Board of Directors
(hereinafter referred to as "the Board") consisting of :-

Board of
Directors.

- (a) eight Directors who shall be appointed by the Minister
from among persons who have had wide experience
and shown capacity, in fisheries and aquaculture,
science and technology, industry, commerce, finance
or administration or law (a Director appointed under
this paragraph is hereinafter referred to as an
"appointed Director") ; and

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of Sri Lanka Act, No. 53 of 1998***

(b) the following *ex-officio* Directors :—

- (i) an officer of the Department of Fisheries and Aquatic Resources Development, nominated by the Minister in charge of the subject of Fisheries and Aquatic Resources Development ;**
- (ii) an officer of the Ministry of the Minister in charge of the subject of Irrigation, nominated by that Minister ;**
- (iii) an officer of the Ministry of the Minister in charge of the subject of Mahaweli Development, nominated by that Minister ;**
- (iv) an officer of the Ministry of the Minister in charge of the subject of Agriculture, nominated by that Minister ;**
- (v) an officer of the Ministry of the Minister in charge of the subject of Wild Life Conservation, nominated by that Minister ;**
- (vi) an officer of the Ministry of the Minister in charge of the subject of Environment, nominated by that Minister ; and**
- (vii) an officer of the Ministry of the Minister in charge of the subject of Finance, nominated by that Minister.**

Qualification for
membership of the
Board.

4. A person shall be disqualified from being appointed or continuing as a Director of the Board, if he—

- (a) is or becomes a member of Parliament or member of a Provincial Council or a member of any local authority ; or**
- (b) is under any law in force in Sri Lanka or any other country, found or declared to be of unsound mind ;**
- (c) is a person who having being declared an insolvent or bankrupt under any law in force in Sri Lanka or any other country, is a undischarged insolvent or bankrupt ; or**

(d) is serving or has served, a sentence of imprisonment imposed by any court in Sri Lanka or any other country.

5. (1) An appointed Director may resign from office by a letter in that behalf addressed to the Minister and such resignation shall take effect upon it being accepted by the Minister in writing. **Provision relating to appointed Directors and the Chairman.**

(2) The Minister may remove any appointed Director from office without assigning any reason therefor,

(3) Where an appointed Director is temporarily unable to perform the duties of his office due to ill health, absence from Sri Lanka or other cause, the Minister may, having regard to the provisions of section 3, appoint another person to act in his place.

(4) Subject to the provisions of subsections (1) and (2), the term of office of an appointed Director shall be three years.

(5) An appointed Director who vacates office by effluxion of time, shall be eligible for reappointment.

(6) Where an appointed Director vacates office by death, resignation or removal, the Minister may, having regard to the provisions of section 3, appoint another Director in his place and the Director so appointed shall hold office for the unexpired period of the term of office of the Director whom he succeeds.

(7) The Minister shall appoint the Chairman of the Board from among the Directors of the Board.

(8) The Chairman of the Board may resign from the office of Chairman by letter in that behalf addressed to the Minister and such resignation shall take effect upon it being accepted by the Minister in writing.

(9) The Minister may at any time remove the Chairman of the Board from the office of Chairman, without assigning any reason therefor.

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of Sri Lanka Act, No. 53 of 1998*

(10) Where the Chairman of the Board is temporarily unable to perform the duties of his office due to illhealth, absence from Sri Lanka or other cause, the Minister may appoint any other Director to act in his place.

(11) Subject to the provisions of subsections (8) and (9), the term of office of the Chairman of the Board shall be his period of membership of the Board.

Meetings of the
Board.

6. (1) The Board shall meet at least once every month.

(2) The quorum for any meeting of the Board shall be five members.

(3) Subject to the provisions of subsections (1) and (2), the Board may regulate the procedure in regard to its meetings and the transaction of business at such meetings.

Disclosure of
interest.

7. A Director who is directly or indirectly interested, financially or otherwise, in any project, undertaking or contract undertaken or made, or proposed to be undertaken or made, by the Board shall disclose his interest at a meeting of the Board, at the earliest possible opportunity, and such disclosure shall be recorded in the minutes of the Board ; and such Director shall not thereafter take part in any deliberation or decision of the Board with regard to such project, undertaking or contract, unless the Board otherwise directs.

Remuneration
of Directors.

8. The Directors of the Board may be remunerated at such rates as may be determined by the Minister with the concurrence of the Minister in charge of the subject of Finance.

Vacancies not
to invalidate
proceedings.

9. No act or proceeding of the Board shall be deemed to be invalid by reason only of the existence of any vacancy among its Directors or any defect in the appointment of a Director.

Seal of the
Authority.

10. (1) The Authority shall have a common seal which shall be in the custody of such person as the Board may decide from time to time.